

2014 WL 6608130 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Ishi K. WONEY, Plaintiff,

v.

THE CITY OF NEW YORK, the New York City Police Department, Police Officer Timothy Collins, Police Officer Michael Whelan, Police Officer **Randy Kyrk** and John Does-Police Officers as yet unidentified, Defendants.

No. 0306026-2014.
November 13, 2014.

Summons

Rubenstein & Rynecki Esqs., 16 Court Street, Suite 1717, Brooklyn, New York 11241, (718) 522-1020, plaintiff's attorneys:.

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

COMPLAINT

Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT AND BATTERY ON BEHALF OF ISHI K. WONEY

1. That at all times hereinafter mentioned, plaintiff was and still is arrsident co of the County of Bronx, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on April 14, 2014, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on June 4, 2014, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.
6. That on March 8, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.
7. That on March 8, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ISHI K. WONEY, was lawfully present at or about the intersection of 211th Street and Barnes Avenue, County of Bronx, City and State of New York.
8. That on March 8, 2014, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ISHI K. WONEY, was assaulted and battered by defendants, POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, at the aforesaid premises.
9. That on March 8, 2014, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.
10. That on March 8, 2014, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, ISHI K. WONEY, were acting within the scope of their employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
11. That on March 8, 2014, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.
12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.
13. By the reason of the foregoing, the plaintiff, ISHI K. WONEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ISHI K. WONEY**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “13” inclusive with the same force and effect as if more fully set forth at length herein.
15. That defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, ISHI K. WONEY.
16. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER TIMOTHY COLLINS,

POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, ISHI K. WONEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE ARREST ON BEHALF OF ISHI K. WONEY

18. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “17” inclusive with the same force and effect as if more fully set forth at length herein.

19. That on March 8, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, ISHI K. WONEY.

20. That on March 8, 2014, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, ISHI K. WONEY, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, ISHI K. WONEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF ISHI K. WONEY**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered “1 through “22” inclusive with the same force and effect as if more fully set forth at length herein.

24. That on March 8, 2014, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That defendants, POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, ISHI K. WONEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL AND NEGLIGENT
INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF ISHI K. WONEY**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “26” inclusive with the same force and effect as if more fully set forth at length herein.

28. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ISHI K. WONEY.

30. That as a result of said intentional and negligent acts, the plaintiff, ISHI K. WONEY, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, ISHI K. WONEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF ISHI K. WONEY**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “31” inclusive with the same force and effect as if more fully set forth at length herein.

33. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the plaintiff, ISHI K. WONEY, in violation of [42 U.S.C.A. section 1983](#) as well as other applicable state and federal laws.

34. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, ISHI K. WONEY, of liberty without due process and without reasonable cause in violation of [42 U.S.C.A. Section 1983](#) as well as other applicable state and federal laws.

35. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

36. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, [42 U.S.C.A. Section 1983](#) as well as other applicable state and federal laws.

37. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

38. That the defendants' actions were not privileged or immune.

39. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

40. By the reason of the foregoing, the plaintiff, ISHI K. WONEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR PUNITIVE DAMAGES ON BEHALF OF ISHI K. WONEY

41. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “40” inclusive with the same force and effect as if more fully set forth at length herein.

42. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

43. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER TIMOTHY COLLINS, POLICE OFFICER MICHAEL WHELAN, POLICE OFFICER **RANDY KYRK** and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

44. By the reason of the foregoing, the plaintiff, ISHI K. WONEY, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, ISHI K. WONEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, ISHI K. WONEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, ISHI K. WONEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, ISHI K. WONEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, ISHI K. WONEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, ISHI K. WONEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, ISHI K. WONEY, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York November 10, 2014

Yours etc.

ROBERT MIJUCA, ESQ.

RUBENSTEIN & RYNECKI, ESQS.

Attorneys for Plaintiff

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